

Amendment No. 1 to SB2450

Briggs
Signature of Sponsor

AMEND Senate Bill No. 2450

House Bill No. 2114*

by deleting all language after the enacting clause and substituting:

SECTION 1.

(a) The Tennessee Advisory Commission on Intergovernmental Relations (TACIR) shall conduct a study to determine if newspapers of general circulation remain the most efficient and effective manner for governments to provide the public with transparent and accessible information. This study must also examine how the efficiency of public notice methods has changed historically.

(b) TACIR shall further study how the public has historically obtained its news and information compared to today. This will include how the number of newspapers has changed in Tennessee, how their publication frequency has changed, and whether the number of subscribers as a percentage of the population has changed historically.

(c) TACIR shall examine the ability of government entities to create public notice systems, including their ability to maintain permanent public archives, protect against data corruption, and ensure independent verification of publication. TACIR shall also review the costs associated with government entities maintaining online public notice platforms.

(d) TACIR shall review all governmental and public entities' notice requirements and practices to determine how much taxpayer money is used to meet newspaper publication requirements in this state. The study must also examine if citizens should be required to pay a subscription fee to access information that is intended to provide notice and transparency of government actions.

(e) TACIR shall consider how the availability of broadband access across the states, especially in rural communities, may affect the publication of online public notices.

(f) TACIR shall review public notice practices in other states and any available trends or advances in technology. This will include whether any new practices have affected transparency, government accountability, the impact on rural communities, or civic participation in those states.

(g) TACIR shall consult with interested parties regarding the subject of this study. Those interested parties must include, but are not limited to, local governments, newspaper publishers, the Tennessee Press Association, representatives from rural communities, government entities in other states that publish notices online, and open government advocates.

(h) TACIR may request information and input from state and local governmental entities, as necessary, and such entities shall comply with TACIR's request. The study must be conducted from within TACIR's existing resources.

(i) Upon completion of the study required by this section, TACIR shall report its findings and recommendations, including any proposed legislation, to the chair of the state and local government committee of the senate, the chair of the committee of the house of representatives having jurisdiction over subject matters pertaining to state and local government, and the legislative librarian. The report may be delivered electronically.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.